

Court: Circuit Court of Jackson County, Associate Circuit Division

Applicant: Jordan Alexandria Montgomery-Reyes

Original case: SYNTH-10CR-006130

Application for expungement - section 610.130

Court: Circuit Court of Jackson County, Associate Circuit Division

Applicant: Jordan Alexandria Montgomery-Reyes

Original case number: SYNTH-10CR-006130

New expungement case number:

Identified record

Date of birth: 04/17/1988

Mailing address: 9876 Long Synthetic Participant Residence Boulevard, Independence MO 64057

Telephone: 816-555-0142

Offense: First intoxication-related traffic misdemeanor under section 577.010

Statute of offense: 577.010

Offense level: misdemeanor

Arrest date: 04/12/2010

Plea or conviction date: 05/17/2010

Sentencing date: 05/17/2010

Applicant allegations for review before personal execution

I allege that the stated plea or conviction was my first intoxication-related traffic or boating offense, a misdemeanor or county or city ordinance violation. It was not a conviction for driving a commercial motor vehicle while under the influence of alcohol.

At least ten years have elapsed since the stated plea or conviction. Since that date, I have not been convicted of a subsequent intoxication-related traffic or boating offense and have had no other subsequent alcohol-related enforcement contacts as defined in section 302.525.3.

I have no intoxication-related traffic or boating offense or alcohol-related enforcement action pending. I understand that these conditions are tested at the hearing and must remain true then.

I have never been issued, and am not required to possess, a commercial driver license in Missouri or any other state. I have not previously received an expungement under section 610.130.

Agencies identified from my records

Record custodian 1: Circuit Court of Jackson County; 100 Synthetic Records Street, Kansas City MO 64106

Record custodian 2: Kansas City Police Department; 101 Synthetic Records Street, Kansas City MO 64106

Record custodian 3: Missouri State Highway Patrol CJIS Division; 102 Synthetic Records Street, Kansas City MO 64106

Record custodian 4: Jackson County Prosecuting Attorney; 103 Synthetic Records Street, Kansas City MO 64106

Court: Circuit Court of Jackson County, Associate Circuit Division

Applicant: Jordan Alexandria Montgomery-Reyes

Original case: SYNTH-10CR-006130

Application for expungement - section 610.130

Record custodian 5: Missouri Department of Revenue; 104 Synthetic Records Street, Kansas City MO 64106

Record custodian 6: Synthetic Additional Records Custodian; 105 Synthetic Records Street, Kansas City MO 64106

Requested relief

I request that this court review the application and hold the hearing required by section 610.130, make the findings required by section 610.130, and enter the expungement order that the section requires if those conditions are satisfied. The request concerns the identified matter and its official records, including relevant administrative records; it does not make a judicial finding.

Once-in-a-lifetime warning and personal declaration

Section 610.130 permits only one expungement under that section. Officials may retain records necessary to enforce that limit. Review that consequence before signing.

I declare under penalty of perjury that the factual allegations in this application are true and correct to my knowledge. These are my allegations for the court to determine.

Applicant signature:

Signing date:

Applicant printed name: Jordan Alexandria Montgomery-Reyes

Court: Circuit Court of Jackson County, Associate Circuit Division

Applicant: Jordan Alexandria Montgomery-Reyes

Original case: SYNTH-10CR-006130

Proposed order - section 610.130

Court: Circuit Court of Jackson County, Associate Circuit Division

Applicant: Jordan Alexandria Montgomery-Reyes

Original case number: SYNTH-10CR-006130

New expungement case number:

Proposed order for court review only

This is a proposed order, not an entered ruling. The court determines qualification under section 610.130 after hearing.

Identified offense: First intoxication-related traffic misdemeanor under section 577.010

Offense statute: 577.010

Plea or conviction date: 05/17/2010

Sentencing date: 05/17/2010

Court findings and decision - leave unmarked

Hearing date:

[] After hearing, court finds: qualifying first misdemeanor or ordinance intoxication offense; ten years elapsed; no subsequent intoxication-related traffic or boating conviction; no other subsequent alcohol-related enforcement contact; no such offense or enforcement action pending at hearing; no disqualifying commercial-driver or commercial-vehicle condition; no prior relief under section 610.130.

[] GRANTED: Upon these required findings, the court orders expungement under section 610.130 of all official recordings of the identified arrest, plea, trial or conviction to the extent provided by that section, and the corresponding statutory confidentiality and restoration. Records sufficient to enforce the one-expungement limit may be retained as the section permits.

[] DENIED: The court denies the application for the reasons it supplies below.

Additional court directions or reasons:

Identified custodians for court-directed implementation

Record custodian 1: Circuit Court of Jackson County; 100 Synthetic Records Street, Kansas City MO 64106

Record custodian 2: Kansas City Police Department; 101 Synthetic Records Street, Kansas City MO 64106

Record custodian 3: Missouri State Highway Patrol CJIS Division; 102 Synthetic Records Street, Kansas City MO 64106

Record custodian 4: Jackson County Prosecuting Attorney; 103 Synthetic Records Street, Kansas City MO 64106

Record custodian 5: Missouri Department of Revenue; 104 Synthetic Records Street, Kansas City MO 64106

Court: Circuit Court of Jackson County, Associate Circuit Division

Applicant: Jordan Alexandria Montgomery-Reyes

Original case: SYNTH-10CR-006130

Proposed order - section 610.130

Record custodian 6: Synthetic Additional Records Custodian; 105 Synthetic Records Street, Kansas City MO 64106

Court execution only

Order date:

Judicial signature:

Judicial printed name:

Court: Circuit Court of Jackson County, Associate Circuit Division

Applicant: Jordan Alexandria Montgomery-Reyes

Original case: SYNTH-10CR-006130

Certificate of actual service

Court: Circuit Court of Jackson County, Associate Circuit Division

Applicant: Jordan Alexandria Montgomery-Reyes

Original case number: SYNTH-10CR-006130

New expungement case number:

Use this certificate only if the filing court directs the applicant to serve the named respondents. Complete it only after actual service using the court-permitted method. No service or hearing is created by generating this page.

Actual documents served:

Actual recipients and destinations:

Actual service method:

Actual service date:

Actual server printed name:

Actual server signature:

Certificate signing date:



Confidential Case Filing Information Sheet – Non-Domestic Relations

Filing Date:	County/City of St. Louis: Jackson
Style of Case: Jordan Alexandria Montgomery-Reyes v. Circuit Court of Jackson County et al. (i.e. In the Estate of; In the Matter of; Petitioner v. Respondent.)	☐ The unredacted document is attached to this filing sheet in place of listing the redacted information identifiers below.
Case Type Code:	Case Type Description:

Party Type Code: PET Party Type Description: Petitioner
 Name (if a person): (Last) Montgomery-Reyes (First) Jordan (Middle) Alexandria
 Organization (if non-person): _____
 Address: 9876 Long Synthetic Participant Residence Boulevard
 City: Independence State: MO Zip: 64057 Contact Telephone Number: 816-555-0142
 Email Address: alexandria.montgomery.reyes@example.test
 DOB/DOD: 04/17/1988 Gender: ☒ Male ☐ Female SSN: 123-45-6789
 Attorney Name (if represented by counsel): _____ Bar ID: _____ Party Type Code: _____

Party Type Code: RES Party Type Description: Respondent
 Name (if a person): (Last) _____ (First) _____ (Middle) _____
 Organization (if non-person): Circuit Court of Jackson County
 Address: 100 Synthetic Records Street
 City: Kansas City State: MO Zip: 64106 Contact Telephone Number: _____
 Email Address: _____
 DOB/DOD: _____ Gender: ☐ Male ☐ Female SSN: _____
 Attorney Name (if represented by counsel): _____ Bar ID: _____ Party Type Code: _____

Party Type Code: RES Party Type Description: Respondent
 Name (if a person): (Last) _____ (First) _____ (Middle) _____
 Organization (if non-person): Kansas City Police Department
 Address: 101 Synthetic Records Street
 City: Kansas City State: MO Zip: 64106 Contact Telephone Number: _____
 Email Address: _____
 DOB/DOD: _____ Gender: ☐ Male ☐ Female SSN: _____
 Attorney Name (if represented by counsel): _____ Bar ID: _____ Party Type Code: _____

Instructions

- ✓ Complete this form for all parties known at the time of filing. Provide the most appropriate Case Type and Party Type codes and descriptions. (Found on the Case Types List and Party Types List at www.courts.mo.gov on the Court Forms/Filing Information page.)
- ✓ If additional space is needed, complete additional Confidential Case Filing Information Sheets.

NOTE: The **full** Social Security Number (SSN) is **required** pursuant to Missouri Supreme Court Operating Rule 4.07 if the party is a person and is reasonably available. This is a confidential document. This information is needed to open a case in the court's case management system. While cases deemed public under Missouri statutes can be accessed through Case.net, the day and month of birth, SSN, and confidential addresses are NOT provided to the public through Case.net.



Confidential Case Filing Information Sheet – Non-Domestic Relations

Filing Date:	County/City of St. Louis: Jackson
Style of Case: Jordan Alexandria Montgomery-Reyes v. Circuit Court of Jackson County et al. (i.e. In the Estate of; In the Matter of; Petitioner v. Respondent.)	☐ The unredacted document is attached to this filing sheet in place of listing the redacted information identifiers below.
Case Type Code:	Case Type Description:

Party Type Code: RES Party Type Description: Respondent
 Name (if a person): (Last) _____ (First) _____ (Middle) _____
 Organization (if non-person): Missouri State Highway Patrol CJIS Division
 Address: 102 Synthetic Records Street
 City: Kansas City State: MO Zip: 64106 Contact Telephone Number: _____
 Email Address: _____
 DOB/DOD: _____ Gender: ☐ Male ☐ Female SSN: _____
 Attorney Name (if represented by counsel): _____ Bar ID: _____ Party Type Code: _____

Party Type Code: RES Party Type Description: Respondent
 Name (if a person): (Last) _____ (First) _____ (Middle) _____
 Organization (if non-person): Jackson County Prosecuting Attorney
 Address: 103 Synthetic Records Street
 City: Kansas City State: MO Zip: 64106 Contact Telephone Number: _____
 Email Address: _____
 DOB/DOD: _____ Gender: ☐ Male ☐ Female SSN: _____
 Attorney Name (if represented by counsel): _____ Bar ID: _____ Party Type Code: _____

Party Type Code: RES Party Type Description: Respondent
 Name (if a person): (Last) _____ (First) _____ (Middle) _____
 Organization (if non-person): Missouri Department of Revenue
 Address: 104 Synthetic Records Street
 City: Kansas City State: MO Zip: 64106 Contact Telephone Number: _____
 Email Address: _____
 DOB/DOD: _____ Gender: ☐ Male ☐ Female SSN: _____
 Attorney Name (if represented by counsel): _____ Bar ID: _____ Party Type Code: _____

Instructions

- ✓ Complete this form for all parties known at the time of filing. Provide the most appropriate Case Type and Party Type codes and descriptions. (Found on the Case Types List and Party Types List at www.courts.mo.gov on the Court Forms/Filing Information page.)
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Case Type Code:	Case Type Description:

Party Type Code: RES Party Type Description: Respondent
 Name (if a person): (Last) _____ (First) _____ (Middle) _____
 Organization (if non-person): Synthetic Additional Records Custodian
 Address: 105 Synthetic Records Street
 City: Kansas City State: MO Zip: 64106 Contact Telephone Number: _____
 Email Address: _____
 DOB/DOD: _____ Gender: ☐ Male ☐ Female SSN: _____
 Attorney Name (if represented by counsel): _____ Bar ID: _____ Party Type Code: _____

Party Type Code: _____ Party Type Description: _____
 Name (if a person): (Last) _____ (First) _____ (Middle) _____
 Organization (if non-person): _____
 Address: _____
 City: _____ State: _____ Zip: _____ Contact Telephone Number: _____
 Email Address: _____
 DOB/DOD: _____ Gender: ☐ Male ☐ Female SSN: _____
 Attorney Name (if represented by counsel): _____ Bar ID: _____ Party Type Code: _____

Party Type Code: _____ Party Type Description: _____
 Name (if a person): (Last) _____ (First) _____ (Middle) _____
 Organization (if non-person): _____
 Address: _____
 City: _____ State: _____ Zip: _____ Contact Telephone Number: _____
 Email Address: _____
 DOB/DOD: _____ Gender: ☐ Male ☐ Female SSN: _____
 Attorney Name (if represented by counsel): _____ Bar ID: _____ Party Type Code: _____

Instructions

- ✓ Complete this form for all parties known at the time of filing. Provide the most appropriate Case Type and Party Type codes and descriptions. (Found on the Case Types List and Party Types List at www.courts.mo.gov on the Court Forms/Filing Information page.)
- ✓ If additional space is needed, complete additional Confidential Case Filing Information Sheets.

NOTE: The **full** Social Security Number (SSN) is **required** pursuant to Missouri Supreme Court Operating Rule 4.07 if the party is a person and is reasonably available. This is a confidential document. This information is needed to open a case in the court's case management system. While cases deemed public under Missouri statutes can be accessed through Case.net, the day and month of birth, SSN, and confidential addresses are NOT provided to the public through Case.net.

REDACTED INFORMATION:

Redacted Information Identifier	Redacted Information

Submitted by: Jordan Alexandria Montgomery-ReyesBar ID (required if attorney):

Address: (if not shown above):

City: State: Zip:

Phone: 816-555-0142Email Address: alexandria.montgomery.reyes@example.test

IMPORTANT: It is the parties' responsibility to keep the court informed of any change of address or employment.

CASE TYPES LIST

CATEGORY & CASE TYPE DESCRIPTION	COURT FILED IN CASE TYPE CODE	
DOMESTIC RELATIONS	FAMILY	CIRCUIT
IV-D Administrative Order with Hearing	Q1	D1
IV-D Contempt	Q2	D2
IV-D Miscellaneous Domestic Relations	Q3	D3
IV-D Motion to Modify	Q4	D4
IV-D Paternity	Q5	D5
IV-D UIFSA - Initiating	Q6	D6
IV-D UIFSA - Responding	Q7	D7
IV-D URESA - Initiating	Q8	D8
IV-D URESA - Responding	Q9	D9
Change of Name	QD	DD
Contempt - Domestic Relations	QG	DG
Dissolution of Marriage without Children	QH	DH
Dissolution of Marriage with Children	QI	DI
Habeas Corpus - Domestic	QJ	DJ
Legal Separation/Annulment/ Separation Maintenance	QK	DK
Modify Registration of Foreign Judgment	QL	DL
Motion to Modify	QM	DM
Paternity	QN	DN
Motion to Modify Paternity	QU	DU
Registration of Foreign Judgment - Child Custody	QO	DO
Registration of Foreign Judgment - Dissolution	QP	DP
Miscellaneous Domestic Relations	QR	DR
Family Access Motion	QS	DS
Set Aside Paternity Judgment	QT	DT
Victim Name Change	QV	DV
Petition for Child Custody/Support	QW	DW
Other Miscellaneous Action	QX	X1
Grandparent Mediation	QY	
Child Support/Administrative Order		NB
Child Support/Administrative Order Modification		NC
ADOPTION	FAMILY	CIRCUIT
Adoption - Regular	JD	JP
Adoption Step - Child	JF	JR
Adoption - Adult	JG	JS
JUVENILE	FAMILY	CIRCUIT
Status Offense	JA	JM
Delinquency	JB	JN
Abuse and Neglect	JC	JO
Termination of Parental Rights	JE	JQ
Permanency Planning Motion	JH	JT
Reentry of Custody to CD (Childrens Division)	JJ	JK
Minor Abortion Contest	JU	
PROTECTION ORDERS	FAMILY	CIRCUIT
Adult Abuse without Stalking	QA	DA
Adult Abuse Stalking	QB	DB
Child Protection Order	QE	DE
Registration of Foreign Protection Order	QQ	DQ

CATEGORY & CASE TYPE DESCRIPTION	COURT FILED IN CASE TYPE CODE	
CONTRACT	ASSOCIATE	CIRCUIT
Breach of Contract	CM	CA
Promissory Note	CN	CB
Specific Performance	CO	CC
Suit on Account	CP	CD
Contract - Other	CQ	CE
ADMINISTRATIVE REVIEW	ASSOCIATE	CIRCUIT
Chapter 536 State Agency Review	IN	IA
Drivers License Revocation Review (302.311 RSMo)	IO	IB
Trial De Novo of DOR Decision	IP	IC
Refused Breathalyzer (302.750/577.04 RSMo)	IQ	ID
Limited Driving Privileges (302.309 RSMo)	IR	IE
Other Administrative Review	IS	IF
Judicial Review of Suspension and Revocation of Motor Vehicle Dealer's License (301.562 RSMo)		IG
SATOP Review	IT	
TORTS	ASSOCIATE	CIRCUIT
Employment Discrimination (213.111 RSMo)	TO	TJ
Public Accommodation (213.111 RSMo)	TP	TK
Asbestos	TQ	TA
Personal Injury - Federal Employee Liability Act	TR	TB
Personal Injury - Malpractice	TS	TC
Personal Injury - Product Liability	TT	TD
Personal Injury - Vehicular	TU	TE
Personal Injury - Other	TV	TF
Property Damage	TW	TG
Wrongful Death	TX	TH
Other Tort	TY	TI
REAL ESTATE	ASSOCIATE	CIRCUIT
Rent and Possession	R1	RI
Unlawful Detainer	R2	RJ
Application to Enforce Mechanics Lien	RS	RA
Eminent Domain/Condemnation - State		RB
Eminent Domain/Condemnation - Other		RC
Exception	RV	RD
Foreclosure	RW	RE
Landlord Complaint	RX	RF
Partition		RG
Quiet Title		RH
Other Real Estate Action	R3	RK
EXTRAORDINARY REMEDY	ASSOCIATE	CIRCUIT
Declaratory Judgment		EA
Habeas Corpus	EP	EB
Injunction		EC
Other Extraordinary Remedy		ED
Show Cause to Enforce Jury Service	ET	EF
Temporary Restraining Order		EG

CASE TYPES LIST

CATEGORY & CASE TYPE DESCRIPTION	COURT FILED IN CASE TYPE CODE	
MISCELLANEOUS CIVIL	ASSOCIATE	CIRCUIT
Action Against Garnishee	YA	XA
CAFA Forfeit (513.600 - 513.645 RSMo)	YB	XB
Common Law Lien Petition (428.115 RSMo)	YC	XC
Contempt	YD	XD
Establishment of Charter	YE	XE
Examination of Judgment Debtor	YF	XF
Expungement of Crim/Arrest Record		XG
Expungement of Records (610.140 RSMo)		X5
Removal of Name from Sex Offender Registry		X6
DOR Re-Issue Driver License		X7I
Removal of Firearm Disqualification		X9
Out of State Witness	YH	XH
Registration of Foreign Judgment (Excluding Domestic Relations)	YI	XI
Replevin	YJ	XJ
Revival of Judgment	YK	XK
Delinquent City License Fee	YL	XL
Delinquent City Tax	YM	XM
Delinquent County License Fee	YN	XN
Delinquent County Tax	YO	XO
Delinquent Sales Tax	YP	XP
Delinquent State Taxes	YQ	XQ
Personal Property Taxes	YR	XR
Tax Action Other	Y1	XZ
Other Miscellaneous Action	Y2	X1
Arbitration Filed	Y4	X4
Trial De Novo		XS
Small Claims Trial De Novo		XT
Will Contest (473.083 RSMo)		XU
Small Claims Certified		XV
Motion, Rules 24.035 or 29.15		XW
Pro Forma Decree of Incorporation		XY
Transcript Judgment		NA
Mechanics Lien		ND
Contraband Destruction Order		NE
Foreign/Non-Case Document		NF
Search Warrant/Investigative Subpoena		NZ
Grandparent Mediation	YT	
Owner/Lienholder Petition for Property Release	YU	
Judicial Review of Filing False Documents	IU	IH
Expunge Marijuana Criminal/Arrest Records	X#	
SMALL CLAIMS	ASSOCIATE	
Small Claims Under \$100	YV	
Small Claims Over \$100	YW	
Petition for Revocation of Conceal Carry Endorsement (571.117 RSMo)	YX	
Appeal of Denial of Conceal Carry Endorsement (571.114 RSMo)	YZ	

PROBATE

CATEGORY & CASE TYPE DESCRIPTION	CASE TYPE CODE	
WILLS		
Will Deposited During Lifetime	P7	
Will Filed Only - Deceased	P9	
Will Admitted or Rejected	PK	
DECEDENT'S ESTATES		
Determination of Heirship	PJ	
Required Administration	PX	
Refusal of Letters - Creditor	PE	
Refusal of Letters - Spouse	PF	
Refusal of Letters - Minor	PG	
	WITH WILL	WITHOUT WILL
Small Estate Affidavit	PH	PI
Independent Administration	PC	PD
Supervised Administration	PA	PB
TRUSTS		
Successor Trustee	P3	
Trust Registration	P4	
INCAPACITATED/DISABLED	MINOR	ADULT
Guardianship	PS	PR
Limited Guardianship	PL	PT
Conservatorship	PO	PN
Limited Conservatorship		PP
Guardian/Conservator	PV	PU
Limited Guardian/Conservator	PY	PW
Dispense with Conservator	PQ	
Standby Guardianship	P2	P1
Registration of Foreign Order Guardian/Conservator	G2	G1
MISCELLANEOUS		
Sexual Predator (632.480)	P6	
Probate Miscellaneous - Non Case	P8	
Miscellaneous Probate - Other	PZ	

INVOLUNTARY DETENTION

CATEGORY & CASE TYPE DESCRIPTION	CASE TYPE CODE
MENTAL HEALTH	
Petition for 21 Day	HB
Petition for 90 Day	HC
Petition for 180 Day	HD
Petition for 1 Year	HE
Involuntary Detention/Treatment - Out of County	HR
Petition for Electroconvulsive Therapy (ECT) Treatment	HF
Application for 96 Hour	HA
Application for Conditional Release	HG
ALCOHOL/DRUG ABUSE	
Application for 96 Hour	HO
Petition for 30 Day	HP
Petition for 90 Day	HQ

IN THE 16 JUDICIAL CIRCUIT, JACKSON COUNTY, MISSOURI

Judge or Division: _____

Case Number: _____

Petitioner: Jordan Alexandria Montgomery-Reyes

Petitioner's Address/Telephone: (Date File Stamp)
9876 Long Synthetic Participant Residence Boulevard, Independence MO 64057;
816-555-0142

VS.

Respondent: Agencies named in application

Respondent's Address/Telephone: _____

Motion and Affidavit in Support of Request to Proceed As a Poor Person

Marital Status: Married If Married, Spouse's name: Taylor Example Number of dependents: 2

(Include Spouse's Income and Expenses if Married)

Monthly Income

Gross salary (before deductions)	<u>\$ 1850.00</u>
Public assistance	<u>\$ 240.00</u>
Retirement/Pension	<u>\$ 0.00</u>
Social Security	<u>\$ 0.00</u>
Child Support	<u>\$ 0.00</u>
Maintenance	<u>\$ 0.00</u>
Other income to be considered	<u>\$ 75.00</u>
Total Monthly Income	<u>\$ 2165.00</u>

Monthly Expenses

☐ Mortgage	☒ Rent Payment	<u>\$ 1050.00</u>
Utilities		<u>\$ 260.00</u>
Food		<u>\$ 520.00</u>
Payment on debts & credit cards		<u>\$ 175.00</u>
Child Support		<u>\$ 0.00</u>
Maintenance		<u>\$ 0.00</u>
Medical expenses to be considered		<u>\$ 145.00</u>
		<u>\$ 80.00</u>
Total Monthly Expenses		<u>\$ 2230.00</u>

Assets

Cash on Hand	<u>\$ 45.00</u>
Bank Accounts: Checking	<u>\$ 180.00</u>
Bank Accounts: Savings	<u>\$ 25.00</u>
Approximate value of home	<u>\$ 0.00</u>
And/or other real estate	<u>\$ 0.00</u>
Approximate value of automobile(s) (1) yr/make 2014 synthetic sedan	<u>\$ 2400.00</u>
Approximate value of automobile(s) (2) yr/make 2011 synthetic compact	<u>\$ 1800.00</u>
Approximate value of personal Possessions (list) 1: Household goods	<u>\$ 650.00</u>
Approximate value of personal Possessions (list) 2:	
Approximate value of personal Possessions (list) 3:	
Total Assets	<u>\$ 5100.00</u>

Debts

Home loan balance	<u>\$ 0.00</u>
Automobile loan(s)	<u>\$ 1750.00</u>
Credit card balance(s)	<u>\$ 920.00</u>
Other debts to be considered 1: Medical payment plan	<u>\$ 300.00</u>
Other debts to be considered 2:	
Other debts to be considered 3:	
Total Debts	<u>\$ 2970.00</u>

I swear/affirm under penalty of perjury that these facts are true to my best knowledge and belief.

Date

Your Signature

Missouri section 610.130 filing guide

Correct route and court

This application uses section 610.130 only. Use the court identified in the application, confirmed from the original record.

An application filed with the clerk of the court in which the participant pled guilty or was sentenced (§ 610.130.1). Whether that court opens a new case or accepts the application under the original case number is local practice and is confirmed with the clerk. No Office of the State Courts Administrator form exists for this section, so the application and proposed order are LegalEase-drafted against the statutory contents and the track carries a local-form override for any circuit or municipal division that publishes its own.

Confirm that the court accepts this custom application and proposed order. Use any mandatory local form instead. Confirm whether the application uses the original case number or opens a new case. A new case number and judge assignment remain for the clerk.

Record checks before filing

Missouri Department of Revenue driver record: Order your Missouri driver record from the Department of Revenue. It is the document that shows administrative suspensions and revocations under §§ 302.500 to 302.540 and chemical-test refusals, which are alcohol-related enforcement contacts under § 302.525.3 even where no conviction followed. A participant who answers the enforcement-contact question from memory will very often be wrong.

Out-of-state driver records: Request your driver record from each state where you have been licensed. § 302.525.3 counts a suspension, revocation or conviction in any other state, and § 610.130.4 bars anyone issued or required to hold a commercial driver's licence in any state.

Certified docket sheet and judgment from the court of plea or sentence: Ask the clerk for a certified copy of the docket and the judgment. It establishes the plea or sentencing date the ten-year period runs from, the offense level, and the case number.

Missouri State Highway Patrol criminal record: Order your own criminal record. It supports the agency list and the no-subsequent-conviction condition. Confirm current fees with the Patrol.

Alcohol-related enforcement contacts - section 302.525.3

For purposes of this section, "alcohol-related enforcement contacts" shall include any suspension or revocation under sections 302.500 to 302.540, any suspension or revocation entered in this or any other state for a refusal to submit to chemical testing under an implied consent law, and any conviction in this or any other state for a violation which involves driving while intoxicated, driving while under the influence of drugs or alcohol, or driving a vehicle while having an unlawful alcohol concentration.

An administrative suspension or chemical-test refusal can matter even without a criminal conviction. Compare actual Missouri and out-of-state driver records. Stop for legal help if an entry is ambiguous; this packet does not decide the legal meaning of an individual entry.

Timing, first offense and once-in-a-lifetime choice

Wait at least ten years from the plea or conviction. The required hearing tests subsequent convictions, subsequent alcohol-related enforcement contacts, and pending offenses or enforcement actions at the hearing. Do not substitute section 610.140.

Section 610.130 permits one expungement under that section. The application states firstness and other qualifying facts only as the participant's own allegations; the court determines them. Relief is mandatory when the statutory findings are made.

Review every allegation and record before personally signing and dating. Ask the clerk whether local acknowledgment or notarization is required; no notarization is prescribed by this section.

Missouri section 610.130 filing guide

Official companions and protected blanks

FI-05 is included only when a new circuit or associate circuit case is opened and the court requires it. Its Case Type Code and Case Type Description remain REQUIRED BEFORE FILING for clerk confirmation: the held case-types list does not name this specific statute. Do not borrow X5 or XG from a different route. The clerk supplies the Filing Date, Case number and Judge or Division. The full official trailing pages and submitter fields are retained.

GN10 is included only when the applicant requests a waiver, supplies actual financial facts and confirms the court accepts it. Review all income, spouse/dependent facts, expenses, property and debt entries, then personally sign Your Signature and Date. GN10 Respondent's Address/Telephone requires clerk confirmation before filing when multiple agency respondents are listed. Do not fill the clerk's Date File Stamp or court assignment fields.

Leave every proposed-order finding, grant/deny choice, court direction, order date and judicial signature for the court. Do not obtain a signed order as a prerequisite to filing.

Filing costs and waiver

Not fixed by the section and county-variable. The participant confirms the filing fee and costs with the clerk of the court of plea before filing. No fee figure is published on this track. The participant separately pays for the driver record, the certified docket and the Highway Patrol search.

GN10 under Rule 77.03 and § 514.040 where the filing court accepts the statewide form. Municipal divisions vary, and the participant confirms with the clerk.

Record retrieval costs are separate from filing costs. No fixed filing fee or waiver outcome is promised.

Hearing, notice and actual service

Not prescribed by § 610.130, which requires a hearing but names no notice recipients. In practice the respondents named in the application — the prosecuting or city attorney, the arresting agency, the Highway Patrol and the Department of Revenue — are the entities whose records the order would reach, and the packet directs the participant to ask the clerk how that court notices them. Whether the participant or the clerk gives notice is a local-practice question the packet does not answer for them.

Not prescribed by the section. The packet includes a certificate of service the participant may complete if the clerk directs that the applicant serve the named respondents, and leaves it blank otherwise.

Ask the clerk who gives any required notice, how, to whom, the copy count and whether any hearing is scheduled. The certificate is used only for court-directed actual service; supply its recipients, destinations, documents, method and dates only after service.

After a ruling

Obtain a copy of the entered ruling and ask the clerk about distribution to the identified record custodians, including the Department of Revenue where applicable. Section 610.130 controls the effect and confidentiality of the official records; do not assume a private database or a separate matter disappears. Officials may retain records needed to enforce the one-expungement limit.

Stop and obtain individual legal help

Every intoxication-related matter. The review refers all of them, and the ten-year clean-record showing plus the once-in-a-lifetime consequence make this unsuitable for unassisted self-help; the packet is generated with an attorney-review recommendation on its face.

The driver record shows any suspension, revocation or refusal entry the participant cannot explain.

Any out-of-state licence, conviction, suspension or revocation.

Any commercial driver licence has ever been issued in any state, or the participant's work requires one.

Whether an entry is an alcohol-related enforcement contact under § 302.525.3 is arguable.

The participant is unsure whether the offense was truly their first.

Missouri section 610.130 filing guide

Any intoxication-related matter or enforcement action is pending.

The prosecutor or a named agency opposes, or the court sets a contested hearing.

The participant is weighing whether to spend the one lifetime expungement now or wait.

The participant is not a United States citizen or there is any immigration consequence.

The participant asks about the effect on insurance, employment as a driver, or licensing.

Review fixture notice

These sample facts are synthetic. Do not file this review packet. A build creates no commercial or participant-delivery authority.